

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PARIIS TILLERY,

Plaintiff,

SUMMONS

Index No.:

-against-

The Basis of Venue is:

THE CITY OF NEW YORK, POLICE OFFICER PETER
LAZARE, Shield No. 26342, SERGEANT
CHRISTOPHER MULLER, Shield No. 4155, and
SERGEANT OSCAR PAREDES,

Location of Incident

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 13, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: The City of New York, 100 Church Street, New York, New York 10007
POLICE OFFICER PETER LAZARE, Shield No. 26342, 73rd Precinct, 1470 E
New York Ave, Brooklyn, NY 11212
SERGEANT CHRISTOPHER MULLER, Shield No. 4155, 73rd Precinct, 1470 E
New York Ave, Brooklyn, NY 11212
SERGEANT OSCAR PAREDES, 73rd Precinct, 1470 E New York Ave,
Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PARIIS TILLERY,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER PETER
LAZARE, Shield No. 26342, SERGEANT
CHRISTOPHER MULLER, Shield No. 4155, and
SERGEANT OSCAR PAREDES,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, PARIIS TILLERY, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On January 13, 2015, at approximately 5:00 p.m., plaintiff, while in police custody inside of the 73rd precinct located at 1470 E New York Ave, Brooklyn, NY 11212, was subjected to excessive force by the individually named defendant police officers. Moreover, while inside of the 73rd precinct, the defendant police officers subjected plaintiff to an unconstitutional strip-search. Plaintiff was deprived of his constitutional rights when the individual defendants used excessive force against plaintiff and subjected plaintiff to an unlawful strip search in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff PARIIS TILLERY is a resident of the State of New York.

3. POLICE OFFICER PETER LAZARE, Shield No. 26342, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER PETER LAZARE, Shield No. 26342, is and was at all times relevant herein, assigned to the 73rd Precinct.

5. POLICE OFFICER PETER LAZARE, Shield No. 26342, is being sued in his individual and official capacities.

6. SERGEANT CHRISTOPHER MULLER, Shield No. 4155, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT CHRISTOPHER MULLER, Shield No. 4155, is and was at all times relevant herein, assigned the 73rd precinct.

8. SERGEANT CHRISTOPHER MULLER, Shield No. 4155, is being sued in his individual and official capacities.

9. SERGEANT OSCAR PAREDES, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT OSCAR PAREDES, is and was at all times relevant herein, assigned to the 73rd precinct.

11. SERGEANT OSCAR PAREDES, is being sued in his individual and official capacities.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

14. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On January 13, 2015, at approximately 4:00 p.m., plaintiff was arrested in the vicinity of 1562 E New York Ave, Brooklyn, NY 11212.

18. Plaintiff was arrested in regards to an open I-card related to a complaint that was made by plaintiff's Aunt in regards to a dispute they had previously had on or about January 2, 2015.

19. Plaintiff was handcuffed and searched at the scene.

20. Notably no drugs, guns, on contraband of any kind where recovered from plaintiff's person at the scene.

21. Thereafter, plaintiff was transported to the 73rd precinct.

22. Upon arrival at the 73rd precinct, plaintiff was put into a holding cell.

23. On January 13, 2015, at approximately 5:00 p.m., inside of the 73rd precinct, defendant police officer Lazare approached plaintiff and unlawfully directed him to take off all of his clothes.

24. Notably, at no point in time did defendant police officer Lazare have a specific, articulable factual basis supporting reasonable suspicion or probable cause to believe that plaintiff secreted contraband, evidence, or had a weapon.

25. As such, defendant police officer Lazare did not have the requisite reasonable suspicion or probable cause to conduct a strip search of plaintiff.

26. Nevertheless, without provocation or legal justification, defendant police officer Lazare forcibly grabbed and twisted plaintiff's right shoulder causing him to suffer a dislocated right shoulder.

27. Defendant police officer Lazare then proceeded to forcibly conduct an unlawful strip search of plaintiff.

28. Thereafter, plaintiff requested medical treatment for his right shoulder, which was injured by defendant police officer Lazare.

29. On January 13, 2015, at approximately 6:00 p.m., plaintiff was transported to Brookdale Hospital Medical Center to receive treatment for his physical injuries inflicted by defendant police officer Lazare.

30. Thereafter, on or about January 14, 2015, plaintiff was transported to Brooklyn Central Booking and was arraigned in Brooklyn Criminal Court.

31. Shortly thereafter, plaintiff filed a CCRB complaint against defendant police officer Lazare for using excessive force and for conducting an unlawful strip search.

32. Notably, CCRB substantiated the charges against defendant police officer Lazare for conducting an unlawful strip search and defendant police officer Lazare was disciplined.

33. Some of the individually named defendant police officers failed to intervene to prevent or stop the use of excessive force and to prevent the unlawful strip search against plaintiff or prevent further injury to plaintiff.

34. The use of excessive force against plaintiff and the unlawful strip search of plaintiff by the defendants caused plaintiff to sustain physical, psychological and emotional trauma.

35. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally strip search individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002).

36. New York City Police Officers have testified under oath that it is the policy, practice, and custom of the New York City Police Department to conduct strip searches of every person that is arrested. United States v. Gonzalez, 08 Cr 363 (BSJ), 2009 U.S. Dist. LEXIS 59742 at *7 (S.D.N.Y. March 2, 2009).

37. In fact, the Honorable Barbara S. Jones presiding in the Southern District of New York held that “there is a ‘[NYPD] departmental policy of strip searching all arrestees without making any assessment of particularized circumstances.’” Gonzalez, 2009 U.S. Dist. LEXIS 59742 at *20 (S.D.N.Y. March 2, 2009).

38. As a result of defendant City of New York and the New York City Police Department’s deliberate indifference about the fact that New York City Police Officers routinely conduct unlawful strip searches without reasonable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers strip searching individuals without a factual basis supporting a legal reason to do so.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The use of excessive force by defendants by forcibly grabbing and twisting plaintiff's right shoulder was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Unlawful Strip Search

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. Defendants, despite being aware that plaintiff was seriously injured delayed Plaintiff was strip-searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

44. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

45. As a result of the foregoing, plaintiff's Constitutional rights were deprived and he sustained serious emotional injuries.

THIRD CAUSE OF ACTION

Failure to Intervene

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

48. Defendants failed to intervene to prevent the unlawful conduct described herein.

49. As a result of the foregoing, plaintiff was brutally physically assaulted.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

53. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally strip searching individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002), as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

54. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit,

screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

55. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

56. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

57. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully strip-searched.

58. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

59. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Pariis Tillery demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 13, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
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(212) 577-2690

TO: The City of New York, 100 Church Street, New York, New York 10007
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Brooklyn, NY 11212

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office .

DATED: New York, New York
January 13, 2018

_____/s/_____
STUART E. JACOBS